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GOVERNOR



JARED BLUMENFELD
SECRETARY FOR
ENVIRONMENTAL PROTECTION

Central Valley Regional Water Quality Control Board

28 June 2019

Frank Kennedy
(via email: fkennedy@cityofwilliams.org)
City Administrator
City of Williams
P.O. Box 310
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NOTICE OF APPLICABILITY (NOA); MUNICIPAL GENERAL WASTE DISCHARGE REQUIREMENTS ORDER R5-2017-0085 (NPDES NO. CAG585001); CITY OF WILLIAMS WASTEWATER TREATMENT PLANT, COLUSA COUNTY

Our office received a Notice of Intent (NOI) dated 8 November 2018 from the City of Williams (Discharger), for discharge of tertiary treated domestic wastewater to surface water from the Wastewater Treatment Plant (Facility) to Salt Creek. The General Order for Municipal Wastewater Dischargers That Meet Objectives/Criteria at the Point of Discharge to Surface Water Order R5-2017-0085 (Municipal General Order) requires the submittal of an NOI to apply for regulatory coverage of a surface water discharge. Based on the NOI and subsequent information submitted by the Discharger, staff has determined that the NOI requirements have been fulfilled and the Facility is eligible for coverage under the Municipal General Order. This Facility's discharge is assigned Municipal General Order enrollee number **R5-2017-0085-008** and National Pollutant Discharge Elimination System (NPDES) Permit No. CAG585001. Please reference your Municipal General Order enrollee number, **R5-2017-0085-008**, in your correspondence and submitted documents.

Discharges to surface water from the Facility are currently regulated by an individual NPDES permit, Order R5-2014-0078 (NPDES No. CA0077933) adopted by the Central Valley Regional Water Quality Control Board (Central Valley Water Board) on 6 June 2014, effective on 1 August 2014, and expiring on 31 July 2019. This NOA, authorizing coverage under the Municipal General Order, shall become effective on **1 August 2019**, at which time the terms and conditions in Order R5-2014-0078 will cease to be effective except for enforcement purposes. To meet the provisions contained in division 7 of the Water Code (commencing with section 13000) and regulations adopted thereunder, and the provisions of the Clean Water Act and regulations and guidelines adopted thereunder, the Discharger shall comply with the requirements contained in the Municipal General Order and as specified in this NOA. This action in no way prevents the Central Valley Water Board from taking enforcement action for past violations of Order R5-2014-0078.

The enclosed Municipal General Order may also be viewed at the following web address: https://www.waterboards.ca.gov/centralvalley/board_decisions/adopted_orders/general_orders/r5-2017-0085.pdf. You are urged to familiarize yourself with the entire contents of the enclosed document.

KARL E. LONGLEY SCD, P.E., CHAIR | PATRICK PULUPA, ESQ., EXECUTIVE OFFICER

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The Monitoring and Reporting Program, Attachment E to the Municipal General Order, contains the general monitoring and reporting requirements. The Discharger specific monitoring and reporting requirements are included with this NOA as Appendix D. Only the monitoring and reporting requirements specifically listed in Appendix D of this NOA are applicable to this Facility.

The discharge of treated domestic wastewater shall be in accordance with the requirements contained in the Municipal General Order, as specified in this NOA.

Table 1. Facility Information

WDID	5A060103001
CIWQS Facility Place ID	272631
Discharger	City of Williams
Name of Facility	Wastewater Treatment Plant
Facility Address	501 N. Colusa Cut OPF Road
	Williams, CA 95987
	Colusa County
Facility Contact, Title and Phone	Greg Endeman, Chief Plant Operator (530) 473-2519
Authorized Person to Sign and Submit Reports	Frank Kennedy, City Administrator (530) 473-2955, extension 117
Mailing Address	P.O. Box 310, Williams, CA 95987
Billing Address	Same as mailing address
Type of Facility	Publicly Owned Treatment Works (POTW)
Major or Minor Facility	Minor
Threat to Water Quality	2
Complexity	A
Pretreatment Program	Not Applicable
Recycling Requirements	Not Applicable
Facility Permitted Flow	0.5 million gallons per day (MGD), average dry weather flow
Facility Design Flow	0.5 MGD, average dry weather flow
Watershed	Sacramento – Stone Corral
Receiving Water	Salt Creek (ephemeral)
Receiving Water Type	Inland surface water
Discharge Point 001	Latitude 39° 10' 11" N, Longitude 122° 9' 13" W

I. FACILITY DESCRIPTION

The Discharger provides sewerage service for the community of Williams and serves a population of approximately 5,200, in Colusa County. The current design average dry weather flow capacity of the Facility is 0.5 MGD.

Treatment System. The Facility provides nitrification and denitrification for nitrogen removal and uses tertiary filtration followed by ultraviolet light (UV) for disinfection. The components of the treatment system at the Facility include:

- Headworks with meter, mechanically cleaned basket screen, and standby manual bar-screen
- Flow equalization basin – HDPE-lined
- Biological selector with submerged mixers
- Aeration basin with floating diffused air system (three blowers) – HDPE-lined
- Secondary clarifier
- Filter feed, return activated sludge, waste activated sludge, scum, and drainage pump stations
- Cloth media disk filters
- Chemical feed system and storage for polymer and sodium hypochlorite addition (not currently used)
- UV disinfection
- Re-aeration basin

Solids Handling. Sludge is dewatered using a belt filter press. The biosolids are hauled offsite to Ostrom Road Landfill in Wheatland, California.

II. RECEIVING WATER BENEFICIAL USES

The Facility discharges from Discharge Point 001 to Salt Creek, which flows to Freshwater Creek, a tributary to the Colusa Basin Drain within the Sacramento – Stone Corral watershed. According to the *Water Quality Control Plan for the Sacramento River and San Joaquin River Basins* (Basin Plan) and the Tributary Rule, Salt Creek is an ephemeral stream designated with the following existing beneficial uses:

- municipal and domestic supply (MUN);
- agricultural supply, including irrigation and stock watering (AGR);
- water contact recreation, including canoeing and rafting (REC-1);
- warm freshwater habitat (WARM);
- wildlife habitat (WILD);
- warm and cold migration of aquatic organisms (MIGR); and
- warm spawning, reproduction, and/or early development (SPWN).

Salt Creek also has the following potential beneficial use:

- cold freshwater habitat (COLD)

According to the Basin Plan, groundwater underlying the Facility is designated with the following existing beneficial uses:

- municipal and domestic supply (MUN);
- agricultural supply, including irrigation and stock watering (AGR);
- industrial service supply (IND);
- industrial process supply (PRO);

III. PROVISIONS AND REQUIREMENTS IMPLEMENTING STATE LAW

The provisions/requirements in section VII.2 (Groundwater Limitations) and section IX, Table 3 (Pond Operating Specifications) of this NOA are included to implement State law only. These provisions/requirements and their inclusion in this NOA are not required or authorized under the federal Clean Water Act; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.

IV. RECEIVING WATER TOTAL MAXIMUM DAILY LOADS (TMDLs)

In accordance with section 303(d) of the Clean Water Act, the Central Valley Water Board is required to develop TMDLs for each 303(d) listed pollutant and water body combination.

Salt Creek is not listed as an impaired waterbody on the Clean Water Act 303(d) 2014-2016 California List of impaired water bodies. Therefore, there are no TMDLs applicable to this discharge.

V. DISCHARGE PROHIBITIONS

Discharge prohibitions are contained in section IV of the Municipal General Order. Discharge prohibitions A, B, and C are applicable to this discharge. Discharge prohibition D is *not* applicable to this discharge. There are no additional site-specific discharge prohibitions for this discharge. The applicable discharge prohibitions are as follows.

- The discharge of wastes, other than those described in section I.A and meeting the eligibility criteria in section I.B of the Municipal General Order, is prohibited unless the Discharger obtains coverage under another general or individual Order that regulates the discharge of such wastes. (Municipal General Order section IV.A)
- The by-pass or overflow of wastes to surface waters is prohibited, except as allowed by Federal Standard Provisions I.G. and I.H. (see Municipal General Order section IV.B and Attachment D)
- Neither the discharge nor its treatment shall create a nuisance as defined in section 13050 of the Water Code. section IV.A (Municipal General Order section IV.C)

VI. EFFLUENT LIMITATIONS

The Discharger shall maintain compliance with the following effluent limitations at Discharge Point 001. Effluent limitations are provided in the Municipal General Order. Only the effluent limitations listed below (items 1-6) are applicable to this Facility. Unless otherwise specified in this NOA, compliance shall be measured at Monitoring Location EFF-001, as described in the Monitoring and Reporting Program, Appendix D of this NOA.

1. The Discharger shall maintain compliance with the effluent limitations specified in Table 2.

Table 2. Effluent Limitations

Parameter	Units	Effluent Limitations			Municipal General Order Section Reference
		Average Monthly	Average Weekly	Maximum Daily	
Biochemical Oxygen Demand (5-day @ 20°C)	mg/L	10	15	--	V.A.1.a.ii.(a)
Total Suspended Solids	mg/L	10	15	--	V.A.1.a.ii.(a)
Ammonia Nitrogen, Total (as N)	mg/L	0.84	1.9	--	V.A.1.c.v.(b)
Nitrate plus Nitrite, Total (as N)	mg/L	10	14	--	V.A.1.c.vi

2. **Flow (Municipal General Order section V.A.1.a.iii).** The average dry weather discharge flow shall not exceed 0.5 MGD.
3. **pH (Municipal General Order section V.A.1.c.iv.(a)).** The pH shall at all times be within the range of 6.5 and 8.5.
4. **Percent Removal (Municipal General Order section V.A.1.a.ii.(b)).** The average monthly percent removal of BOD₅ and TSS shall not be less than 85 percent.
5. **Total Coliform Organisms (Municipal General Order section V.A.1.a.ii.(c)). (Measured at UVS-002)** Effluent total coliform organisms shall not exceed:
 - i. 2.2 most probable number (MPN) per 100 mL, as a 7-day median;
 - ii. 23 MPN/100 mL, more than once in any 30-day period; and
 - iii. 240 MPN/100 mL, at any time.
6. **Acute Whole Effluent Toxicity (Municipal General Order section V.A.1.c.i).** Survival of aquatic organisms in 96-hour bioassays of undiluted waste shall be no less than:
 - i. 70%, minimum for any one bioassay; and
 - ii. 90%, median for any three consecutive bioassays.

VII. RECEIVING WATER LIMITATIONS

1. **Surface Water Limitations (Municipal General Order section VI.A).** The Municipal General Order includes receiving surface water limitations in Section VI.A. Based on the information provided in the ROWD/NOI, only the following receiving surface water limitations listed in Municipal General Order Section VI.A are applicable to the Facility.
 - Bacteria (VI.A.2);
 - Biostimulatory Substances (VI.A.3);
 - Chemical Constituents (VI.A.4);
 - Color (VI.A.5);
 - Dissolved Oxygen (VI.A.6.a.i, ii, iv);
 - Floating Material (VI.A.7);
 - Oil and Grease (VI.A.8);
 - pH (VI.A.9.a);
 - Pesticides (VI.A.10);

- Radioactivity (VI.A.11);
- Suspended Sediments (VI.A.12);
- Settleable Substances (VI.A.13);
- Suspended Material (VI.A.14);
- Taste and Odors (VI.A.15);
- Temperature (VI.A.16.a);
- Toxicity (VI.A.17); and
- Turbidity (VI.A.18.a).

2. **Groundwater Limitations (Municipal General Order section VI.B).** Release of waste constituents from any storage, treatment, or disposal component associated with the Facility shall not cause the underlying groundwater to contain waste constituents in concentrations greater than background water quality or water quality objectives, whichever is greater.

VIII. MONITORING AND REPORTING

Monitoring and reporting program requirements are contained in Appendix D of this NOA.

IX. PROVISIONS

Provisions are contained in section VII of the Municipal General Order and the applicable provisions are referenced in the following table.

Table 3. Provisions

Provisions	Municipal General Order Section Applicability to this Facility.
A. Standard Provisions	VII.A – Applicable to all dischargers.
B. Monitoring and Reporting Program (MRP) Requirements	VII.B – The MRP applicable to this Facility is contained in Appendix D of this NOA.
C. Special Provisions	
1. Reopener Provisions	VII.C.1.a, c, d, and e – Applicable. VII.C.1.b, and f through h – Not Applicable.
2. Special Studies, Technical Reports and Additional Monitoring Requirements	
A. Toxicity Reduction Evaluation Requirements	VII.C.2.a – Applicable.
B. Phase 1 Methylmercury Control Study	VII.C.2.b – Not Applicable.
3. Best Management Practices and Pollution Prevention	
a. Pollution Prevention Plan for Mercury	VII.C.3.a – Not Applicable.
b. Mercury Exposure Reduction Program	VII.C.3.b – Not Applicable.
c. Salinity Evaluation and Minimization Plan	VII.C.3.c – Applicable.
4. Construction, Operation and Maintenance Specifications	
a. Filtration System Operating Specifications	VII.C.4.a.i¹ – Applicable. VII.C.4.a.ii and iii – Not Applicable.
b. UV Disinfection System Operating Specifications	VII.C.4.b.i.(a), ii.(a), and iii through vi – Applicable. VII.C.4.b.i.(b) and ii.(b) – Not Applicable.
c. Pond Operating Specifications	VII.C.4.c – Applicable, except the following: VII.C.4.c.i.(a) and VII.C.4.c.x are Not Applicable.
5. Special Provisions for Municipal Facilities	

a. Pretreatment Requirements	VII.C.5.a – Not Applicable.
b. Sludge/Biosolids Treatment or Discharge Specifications	VII.C.5.b – Applicable.
c. Collection System	VII.C.5.c – Not Applicable.
d. Anaerobically Digestible Material	VII.C.5.d – Not Applicable.
6. Other Special Provisions	VII.C.6 – Applicable.
7. Compliance Schedules	VII.C.7 – Not Applicable.

- ¹ For compliance with Filtration System Operating Specifications, turbidity measurements at FIL-001 shall be used to determine compliance, rather than turbidity measurements at FIL-002. Station FIL-001 is defined in this NOA as the filter effluent, which is equivalent to FIL-002 described in the Municipal General Order.

X. COMPLIANCE DETERMINATION

The following compliance determinations, as contained and more fully described in the Municipal General Order, are applicable to this discharge (Municipal General Order section given in brackets, if applicable):

- BOD₅ and TSS Effluent Limitations (VIII.A);
- Average Dry Weather Flow Effluent Limitation (VIII.D);
- Total Coliform Organisms Effluent Limitations (VIII.E);
- Dissolved Oxygen Receiving Water Limitation (VIII.I);
- Chronic Whole Effluent Toxicity Effluent Limitation (VIII.J);
- Period Average, Calendar Month Average, and Annual Average (VIII.N);
- Turbidity Receiving Water Limitation (VIII.O);
- Reporting Requirements (**NOA, Appendix D, section X**); and
- Temperature Receiving Water Limitation. (**NOA, Appendix D, section X.B.7.j**).

XI. ANTI-BACKSLIDING REQUIREMENTS

Anti-backsliding requirements are specified in the Municipal General Order, section V.D.3, of Attachment F (Fact Sheet). According to the Clean Water Act section 402(o)(2)(B)(i), the removal or relaxation of effluent limitations for the following pollutants is allowed because the updated effluent and receiving water monitoring data collected indicates the discharge no longer exhibits reasonable potential to cause or contribute to an exceedance of water quality objectives/criteria.

- Mercury

A more detailed anti-backsliding analysis is provided in Appendix C to this NOA in section I.A Satisfaction of Anti-Backsliding Requirements.

XII. ANTIDEGRADATION REQUIREMENTS

Antidegradation requirements are specified in the Municipal General Order, section V.D.4, of Attachment F (Fact Sheet). This NOA does not allow an increase in flow or mass of pollutants to the receiving water. Thus, the relaxation of effluent limitations is consistent with the antidegradation provisions of 40 C.F.R. 131.12 and State Water Board Resolution No. 68-16, and no further antidegradation analysis is required.

XIII. RATIONALE FOR LIMITATIONS AND MONITORING REQUIREMENTS

Additional rationale for limitations and monitoring requirements is included in Appendix C of this NOA.

XIV. ENFORCEMENT

Failure to comply with the applicable requirements of the Municipal General Order, as specified in this NOA, may result in enforcement actions, which could include civil liability (penalties). Effluent limitation violations may be subject to a Mandatory Minimum Penalty (MMP) of \$3,000 per violation. In addition, late monitoring reports may be subject to MMPs and/or discretionary penalties of up to \$1,000 per day late. If discharges do not occur during any report monitoring period, the Discharger must still submit the monitoring report indicating that no discharge occurred to avoid being subject to enforcement actions.

XV. COMMUNICATION

Until this NOA becomes effective on 1 August 2019, you will need to comply with the effluent limitations and requirements contained in your existing permit, Order R5-2014-0078. For your June and July 2019 monthly self-monitoring reports, you will need to demonstrate compliance with existing Order R5-2014-0078 through 31 July 2019, and compliance with this NOA beginning 1 August 2019.

The Central Valley Water Board is implementing a Paperless Office system to reduce our paper use, increase efficiency, and provide a more effective way for our staff, the public, and interested parties to view documents in electronic form. Therefore, the Discharger is required to submit all self-monitoring, technical, and progress reports required by this NOA via California Integrated Water Quality System (CIWQS) submittal. In general, if any monitoring data for a monitoring location can be submitted using a computable document format (CDF) file upload, then it should be submitted as a CDF file upload, such as characterization monitoring data. However, certain parameters that cannot be uploaded to the CIWQS data tables, such as Annual Operations Reports, should be uploaded as a Portable Document Format (PDF), Microsoft Word, or Microsoft Excel file attachment. Also, please upload or enter a cover letter summarizing the content of the report to the submittal tab of the CIWQS module for each submittal.

All other documents not required to be submitted via CIWQS shall be converted to a searchable PDF and submitted by email to centralvalleysacramento@waterboards.ca.gov. Please include the following information in the body of the email:

- Attention: NPDES Compliance and Enforcement Section;
- Discharger: City of Williams;
- Facility: Wastewater Treatment Plant;
- County: Colusa County; and
- CIWQS place ID: 272631

Documents that are 50 megabytes or larger must be transferred to a DVD or flash drive, and mailed to our office, attention "ECM Mailroom-NPDES".

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Resources Control Board must receive the petition by 5:00 p.m., 30 days after the date this NOA is issued, except that if the thirtieth day following the date this NOA is issued falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water

Resources Control Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the internet at: http://www.waterboards.ca.gov/public_notices/petitions/water_quality or will be provided upon request.

If you have any questions now that your NOA has been issued, the Central Valley Water Board's Compliance and Enforcement Section will take over management of your case. Mohammad Farhad of the Compliance and Enforcement section is your point of contact for any questions regarding this NOA. If you find it necessary to make a change to your permitted operations, you will be directed to the appropriate Permitting staff. You may contact Mohammad Farhad at (916) 464-1181 or at mohammad.farhad@waterboards.ca.gov.



Patrick Pulupa
Executive Officer

Appendices: Appendix A – Location Map
 Appendix B – Flow Schematic
 Appendix C – Rationale for Limitations and Monitoring Requirements
 Appendix D – Monitoring and Reporting Program
 Appendix E – Determination of WQBELs

Enclosure: Municipal General Order R5-2017-0085 (Discharger Only)

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APPENDIX A-I – LOCATION MAP

